

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.

Inc. v. Liebert (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Res judicata, also known as claim preclusion, applies “when a second suit involves (1) the same cause of action (2) between the same parties [or their privies] (3) after a final judgment on the merits in the first suit.” (*Grande v. Eisenhower Medical Center* (2022) 13 Cal.5th 313, 323.) Determining whether the same causes of action are alleged in both suits requires the court to examine the “primary right at stake: if two actions involve the same injury to the plaintiff and the same wrong by the defendant then the same primary right is at stake even if in the second suit the plaintiff pleads different theories of recovery, seeks different forms of relief and/or adds new facts supporting recovery.” (*Cal Sierra Development, Inc. v. George Reed, Inc.* (2017) 14 Cal.App.5th 663, 675.) A voluntary dismissal with prejudice, otherwise known as a retraxit, is deemed a final judgment on the merits against that plaintiff. (*Alpha Mechanical, Heating & Air Conditioning, Inc. v. Travelers Casualty & Surety Co. of America* (2005) 133 Cal.App.4th 1319, 1330.)

Plaintiffs Jeremy Pugliese and Michele Pugliese’s first amended complaint against Franqui Antoinette Moreno alleges causes of action for motor vehicle and loss of consortium. Plaintiffs also filed a complaint against Franqui Antoinette Moreno in the United States District Court, Eastern District of California that alleges causes of action for motor vehicle and loss of consortium based on the same transaction and occurrences. Plaintiffs then voluntarily dismissed their federal complaint against defendant with prejudice 10 days before filing the pending action.

Here, when taking the factual allegations in the FAC as true, plaintiffs do not allege facts sufficient to state either cause of action because res judicata applies to bar this second suit involving the same causes of action, between the same parties, after a final judgment on the merits in the first action.

Accordingly, defendant’s demurrer is sustained in its entirety without leave to amend.

10. S-CV-0053902 ALVAREZ, LETICIA v. PRECISION FLUID CONTROLS

Plaintiff’s Motion for Preliminary Approval of Class Action and PAGA Settlement

Plaintiff’s motion for preliminary approval is continued to **May 28, 2026, at 8:30 a.m. in Department 3**. Plaintiff, or their counsel of record, shall file a supplemental

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declaration on or before **May 21, 2026**, that clarifies whether the settlement amount is \$415,000 or \$500,000 as both numbers are provided in the moving papers.

11. S-CV-0054070 GIUSTI, EMILY v. FORD MOTOR COMPANY

Plaintiffs' Motion for Attorney's Fees for Time Actually Expended and Reasonably Incurred

Preliminary Matters

Defendants' request for judicial notice is granted.

Ruling on Motion

Plaintiff's motion is granted.

Civil Code section 1794, subdivision (a) allows a buyer of a vehicle to bring an action for recovery of their damages and other legal and equitable relief for any failure to comply with obligations arising under the chapter. (Civ. Code § 1794, subd. (a).) If the buyer successfully prevails in their action, he or she may recover "attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (*Id.* at subd. (d).)

Here, plaintiff is the prevailing party because she achieved her litigation objectives. Defendants do not challenge this. Accordingly, the court must

make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of "showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.' " " " "

(*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34.)